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CCS (CCA) Rules, 1965

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CCS (CCA) Rules, 1965

PART I – GENERAL

Rule 1. Short title and commencement

(1) These rules may be called the CCS (CCA) Rules, 1965.

(2) They shall come into force from the 01 December 1965.

Rule 2. Interpretation

In these rules, unless the context otherwise requires:

(a) Appointing authority, in relation to a government servant, means-

- (i) the authority empowered to make appointments to the Service of which the Government servant is for the time being a member.
- (ii) the authority empowered to make appointments to the post which the Government servant for the time being holds.
- (iii) the authority which appointed the Government servant to such Service, grade or post, as the case may be, or whichever authority is the highest authority.

(b) "Cadre Authority"- in relation to a Service, has the same meaning as in the rules regulating that Service.

(c) "Central Civil Service and Central Civil post" includes a civilian Service or civilian post, as the case may be, of the corresponding Group in the Defence Services.

(d) "Commission" means the Union Public Service Commission.

(e) "Defence Services" means services under the Government of India in the Ministry of Defence, paid out of the Defence Services Estimates.

(f) "**Department of the Government of India**" means any establishment or organization declared by the President by a notification in the Official Gazette to be a department of the Government of India.

(g) "**Disciplinary authority**" means the authority competent under these rules to impose on a government servant any of the penalties specified in Rule 11.

(h) "**Government servant**" - Hold a civil post under union, include foreign service, a service under state Govt. disposal of central Govt. and on a temporary post.

(i) "**Head of Department**" for the purpose of exercising the powers as appointing, disciplinary, appellate or reviewing authority, means the authority declared to be the head of the department under the FRSR Rules.

(j) "**Head of the office**" for the purpose of exercising the powers as appointing, disciplinary, appellate or reviewing authority, means the authority declared to be the head of the office under the General Financial Rules.

(k) "**Schedule**" means the Schedule to these rules.

(l) "**Secretary**" means the Secretary to the Government of India in any Ministry or Department, and includes Additional secretary, Joint secretary, Secretary to Prime minister, Secretary to President and secretary to cabinet, secretary to planning commission, etc.

(m) "**Service**" means a civil service of the Union.

Rule 3. Application

(1) These rules shall apply to every Government servant including every civilian Government servant in the Defence Services, but shall not apply to-

- a) Railway Govt. Servant.
- b) A member of all India Service.
- c) Any person in casual employment.

- d) Any person for whom special provision is made.
- e) Extra-Departmental Agents.
- f) Monthly-rated staff paid from contingencies other than those brought on to regular establishment.
- g) Monthly-rated work-charged and other employees not on regular establishment.
- h) Daily-rated staff paid from contingencies.
- i) All hot weather and monsoon establishment.

(2) Notwithstanding anything contained in sub-rule (1), the President may by order exclude any Group of Government servants from the operation of all or any of these rules.

ú STATUTORY UPDATE: Extra-Departmental Agents

The term "Extra-Departmental Agents" (EDA) mentioned in Rule 3(1)(e) is now obsolete in the context of the Department of Posts. They have been re-designated as Gramin Dak Sevaks (GDS). They are governed by the Department of Posts, Gramin Dak Sevaks (Conduct and Engagement) Rules, 2020 (superseding the 2011 rules), not the CCS (CCA) Rules, 1965.

PART II – CLASSIFICATION

Rule 4. Classification of Services

(1) The Civil Services of the Union shall be Classified as follows: -

- (i) Central Civil Services, Group 'A'.
- (ii) Central Civil Services, Group 'B'.
- (iii) Central Civil Services, Group 'C'.

- (iv) Central Civil Services, Group 'D'.

(2) If a Service consists of more than one grade, different grades of such Service may be included in different groups.

ú STATUTORY UPDATE: Abolition of Group 'D'

As per DoP&T Notification S.O. 946(E) dated 09.04.2009 and subsequent implementation of the 6th and 7th CPC, all erstwhile Group 'D' posts have been upgraded and reclassified as Group 'C'. Consequently, there is no "Group D" in the Central Civil Services anymore; these posts are now designated as Multi-Tasking Staff (MTS) within Group 'C'.

Rule 5. Constitution of Central Civil Services

The Central Civil Services, Group 'A', Group 'B', Group 'C' and Group 'D', shall consist of the Services and grades of Services specified in the Schedule.

Rule 6. Classification of Posts

Civil Posts under the Union are Classified as follows:

- (i) Central Civil Posts, Group 'A'
- (ii) Central Civil Posts, Group 'B'
- (iii) Central Civil Posts, Group 'C'
- (iv) Central Civil Posts, Group 'D'

Classification based on Pay Levels (7th CPC):

S.L. No.	Descriptions	Classifications of Posts
1	Level from 10 to 18	Group 'A'

2	Level from 6 to 9	Group 'B'
3	Level from 1 to 5	Group 'C'

ú STATUTORY UPDATE: Current Classification (7th CPC)

The classification of posts is currently governed by DoP&T Order No. 11012/10/2016-Estt.A-III dated 09.11.2017.

- **Group A:** Central Civil Posts carrying Pay in the Pay Matrix at **Level 10 and above**.
- **Group B:** Central Civil Posts carrying Pay in the Pay Matrix at **Level 6 to 9**.
- **Group C:** Central Civil Posts carrying Pay in the Pay Matrix at **Level 1 to 5**.

Rule 6-A.

Classification of services

(Class-I = Group A, Class-II= Group B, Class-III= Group C and Class-IV= Group D).

Rule 7. General Central Service

- Central Civil posts of any Group not included in any other Central Civil Service shall be deemed to be included in the General Central Service of the corresponding Group and a Government servant appointed to any such post shall be deemed to be a member of that Service unless he is already a member of any other Central Civil Service of the same Group.
- (Scientists, NDRF, Non-Political executive)

PART III – APPOINTING AUTHORITY

Rule 8. Appointments to Group 'A' Services and Posts

- All appointments to Central Civil Services, Group 'A' and Central Civil Posts, Group 'A', shall be made by the **President**.
- Provided that the President may, by a general or a special order and subject to such conditions as he may specify in such order, delegate to any other authority the power to make such appointments.
- **Note:** Goa, Daman and Diu, Dadra and Nagar Haveli, Arunachal Pradesh and Mizoram- The Administrators of respectively.

Rule 9. Appointments to other Services and Posts

All appointments to Central Civil Posts, **Group 'B'**, **Group 'C'** and **Group 'D'**, included in the General Central Service shall be made by the authorities specified in that behalf by a general or special order of the President, or where no such order has been made, by the authorities specified in this behalf in the Schedule.

ú STATUTORY UPDATE: Group 'D'

As noted in Part II, Group 'D' posts have been abolished and upgraded to Group 'C'. References to Group 'D' in Rule 9 should be read in the context of the reclassified Group 'C' (Multi-Tasking Staff).

PART IV – SUSPENSION

Rule 10. Suspension

(1) The appointing authority or any authority to which it is subordinate or the disciplinary authority or any other authority empowered in that behalf by the President, by general or special order, may place a government servant under suspension-

- (a) where a disciplinary proceeding against him is contemplated or is pending.
- (aa) where, in the opinion of the authority aforesaid, he has engaged himself in activities prejudicial to the interest of the security of the State.
- (b) where a case against him in respect of any criminal offence is under investigation, inquiry or trial.

(2) **Deemed Suspension:** A Government servant shall be deemed to have been placed under suspension by an order of appointing authority-

- (a) with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding **48 hours**.
- (b) with effect from the date of his conviction, if, in the event of a conviction for an offence, he is sentenced to a term of imprisonment exceeding **48 hours** and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

EXPLANATION - The period of **48 hours** referred to in clause (b) of this sub-rule shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

(3) Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant under suspension is set aside in appeal or on review under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and

from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

(4) Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant is set aside or declared or rendered void in consequence of or by a decision of a Court of Law and the disciplinary authority, on a consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement was originally imposed, the Government servant shall be deemed to have been placed under suspension by the Appointing Authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders.

(5)

- (a) An order of suspension made or deemed to have been made under this rule shall continue to remain in force until it is modified or revoked by the authority competent to do so.

(6) An order of suspension made or deemed to have been made under this rule shall be reviewed by the authority competent to modify or revoke the suspension, before expiry of **90 days** from the effective date of suspension, on the recommendation of the Review Committee constituted for the purpose and pass orders either extending or revoking the suspension. Extension of suspension shall not be for a period exceeding **180 days** at a time.

(7) An order of suspension made or deemed to have been made under sub-rules (1) or (2) of this rule shall not be valid after a period of **90 days** unless it is extended after review, for a further period before the expiry of **90 days**.

- Provided that no such review of suspension shall be necessary in the case of deemed suspension under sub-rule (2), if the Government servant continues to be under suspension at the time of completion of **90 days** of suspension and the **90 days** period in such case will count from the date the Government servant

detained in custody is released from detention or the date on which the fact of his release from detention is intimated to his appointing authority, whichever is later.

[THE FOLLOWING ARE FLAGGED AS OBSOLETE - SEE UPDATE BELOW]

- Provided further that in a case where no charge sheet is issued under these rules, the total period under suspension or deemed suspension, as the case may be, including any extended period in terms of sub-rule (6) shall not exceed,
 - **(a) 270 days** from the date of order of suspension, if the Government servant is placed under suspension in terms of clause (a) of sub-rule (1).
 - **(b) 2 years** from the date of order of suspension, if the Government servant is placed under suspension in terms of clause (aa) or clause (b) of sub-rule (1) as the case may be.
 - **(c) 2 years** from the date the Government servant detained in custody is released or the date on which the fact of his release from detention is intimated to his appointing authority, whichever is later, in the case of deemed suspension under sub-rule (2).

ú **STATUTORY UPDATE: 90-Day Charge Sheet Rule**

The provisions listed in the rule regarding "270 days" and "2 years" (Source 173-177) are NO LONGER VALID for general suspension cases under CCS (CCA) Rules.

Following the Supreme Court judgment in **Ajay Kumar Choudhary vs. Union of India** (2015), the DoP&T issued **Notification No. G.S.R. 669(E) dated 23.08.2016** and **O.M. No. 11012/04/2016-Estt.(A) dated 23.08.2016**.

The Current Rule:

If no charge sheet (memorandum of charges) is issued to the Government servant within 90 days of the date of suspension, the suspension cannot be extended and will lapse automatically. The "2 year" allowance mentioned in the rule is obsolete. The Review Committee cannot extend suspension beyond 90 days if the charge sheet is not served.

PART V – PENALTIES AND DISCIPLINARY AUTHORITIES

Rule 11. Penalties

The following penalties may, for good and sufficient reasons and as hereinafter provided, be imposed on a government servant, namely:

Minor Penalties

- (i) **Censure.**
- (ii) **Withholding of his promotion.**
- (iii) Recovery from his pay of the whole or part of any pecuniary loss caused by him to the Government by negligence or breach of orders.
- (iii)(a) **Reduction to a lower stage in the time-scale of pay by one stage** for a period not exceeding **three years**, without cumulative effect and not adversely affecting his pension.
- (iv) **Withholding of increments of pay.**

Major Penalties

- (v) Save as provided for in Clause (iii)(a), reduction to a lower stage in the time-scale of pay for a specified period, with further directions as to whether or not the Government servant will earn increments of pay during the period of such reduction and whether on the expiry of such period, the reduction will or will not have the effect of postponing the future increments of his pay.
- (vi) Reduction to lower time-scale of pay, grade, post or Service for a period to be specified in the order of penalty, which shall be a bar to the promotion of the Government servant during such specified period to the time-scale of pay, grade, post or Service from which he was reduced, with direction as to whether or not, on promotion on the expiry of the said specified period-

- (a) the period of reduction to time-scale of pay, grade, post or service shall operate to postpone future increments of his pay, and if so, to what extent.
- (b) the Government servant shall regain his original seniority in the higher time scale of pay, grade, post or service.
- (vii) **Compulsory retirement.**
- (viii) **Removal from service** which shall not be a disqualification for future employment under the Government.
- (ix) **Dismissal from service** which shall ordinarily be a disqualification for future employment under the Government.

Provided that, in every case in which the charge of possession of assets disproportionate to known-source of income or the charge of acceptance from any person of any gratification, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act is established, the penalty **Removal** or **Dismissal** from service shall be imposed.

Explanation: The following shall not amount to a penalty within the meaning of this rule, namely:

- (i) Withholding of increments of pay of a government servant for his failure to pass any departmental examination, if it is the terms of his appointment.
- (ii) Stoppage of a government servant at the efficiency bar in the timescale of pay on the ground of his unfitness to cross the bar.
- (iii) Non-promotion of a government servant, whether in a substantive or officiating capacity, which he is eligible.
- (iv) Reversion of a government servant officiating in a higher Service, grade on the ground of unsuitability or on any administrative ground unconnected with his conduct.

- (v) Reversion of a government servant, appointed on probation to any other Service at the end of the period of probation in accordance with the terms of his appointment.
- (vi) Compulsory retirement of a government servant in accordance with the provisions relating to his superannuation or retirement.
- (vii) Termination of the services-
 - (a) of a government servant appointed on probation, during or at the end of the period of his probation, in accordance with the terms of his appointment or the rules and orders governing such probation.
 - (b) of a temporary Government servant in accordance with the provisions of sub-rule (1) of rule 5 of the CCS (Temporary Service) Rules, 1965.
- (viii) Any compensation awarded on the recommendation of the Complaints Committee after inquiring into any complaint of sexual harassment within the meaning of rule 3-C of the CCS (Conduct) Rules, 1964.

Government Decisions (as extracted)

- (1) At least **censure** to be awarded if official to be penalized.
- (2) "Censure" is penalty but "warning" is not a penalty.
- (3) Official under suspension/ facing departmental proceeding to be allowed to appear in departmental examination.
- (4) **Implementation of second penalty imposed during the currency of first penalty**- All the disciplinary authority should clearly indicate in the punishment order whether the two penalties (or multiple penalties) would run concurrently or consecutively, while awarding second or subsequent penalties during the currency of earlier penalty/penalties.

Rule 12. Disciplinary Authorities

- (1) The President may impose any of the penalties specified in Rule 11 on any Government servant.
- (2) The appointing authority or the authority specified in the Schedule in this behalf or by any other authority empowered in this behalf can impose any of the penalties.
- (3) If Govt. Servant is serving in any office, by the head of that office, except where the head of that office is lower in rank than the authority competent to impose the penalty.
- (4) **Major penalties (v) to (ix)** imposed not less than appointing authority.
- (5) In respect of a probationer undergoing training at the **Lal Bahadur Shastri National Academy of Administration**, the Director of the said Academy shall be the authority competent to impose on such probationer any of the penalties specified in clauses (i) and (iii).

Government Decisions: Inquiry Procedures (as extracted)

- (a) Department inquiry will be completed within six months by inquiry officer.
- (b) Inquiry officer should be senior in rank of charge officer.
- (c) The panel of the retired officers created for the purpose of appointing Inquiry officers for conducting departmental inquiry will be valid for a period of three years.

(d) The number of disciplinary cases assigned to an Inquiry Officer:

S. No.	Inquiry officer	Ceiling of number of cases
1.	Retired official	8 cases in a year, not more than 4 cases at a time (Rule 14 and Rule 10 of GDS Rules together).
2.	Serving official (IP/ASP as IO/PO)	10 cases in a year, not more than 2 cases at a time (Rule 14 and Rule 10 of GDS Rules together).

(e) The official act as defense assistance in disciplinary cases:

S. No	Defense Assistant	Ceiling of number of cases
1.	Retired official	8 cases in a year, not more than 4 cases at a time (Rule 14 and Rule 10 of GDS Rules together).
2.	Serving official	Not more than 3 cases at a time (Rule 14 and Rule 10 of GDS Rules together).

(f) The inquiry report should be submitted in two copies to disciplinary authority.

(g) "Hota Committee" regarding Disciplinary and Vigilance Inquiries.

(h) The rate of Honorarium and other allowance payable to retired and serving Inquiry officer:

Item	Witnesses in Charge Sheet Category	Rate per case (in Rs.)
Honorarium (Serving Pt time)	N/A	Inquiry Officer: Equal to 15% of Basic pay drawn Presenting Officer: Equal to 10% of Basic pay drawn
Retired Inquiry Officer	Witnesses are more than 10	90% Monthly basic Pension drawn (<i>Note: This value in rule appears to refer to a ceiling</i>)
	Witnesses are between 6-10	70% Monthly basic Pension drawn
	Witnesses are less than 6	60% Monthly basic Pension drawn
Lump Sum Amounts	Witnesses are more than 10	Rs. 40000/- per case
	Witnesses are between 6-10	Rs. 30000/-
	Witnesses are less than 6	Rs. 20000/-

ú STATUTORY UPDATE: Honorarium Rates for Inquiry Officers

The authoritative rates are governed by DoP&T O.M. No. 142/40/2015-AVD.I dated 15.09.2017 (and subsequent 2024 revisions if applicable, though 2017 remains the base standard).

Ceiling Rates for Retired Officers:

- **Category I (More than 10 witnesses): Rs. 75,000/-**
- **Category II (6-10 witnesses): Rs. 40,000/-**
- **Category III (Less than 6 witnesses): Rs. 20,000/-**

Transport Allowance: Rs. 40,000/- per case (subject to condition).

Secretarial Assistance: Rs. 30,000/- per case.

Note: The "90% Monthly basic pension" likely refers to the rule that the Honorarium + Pension should not exceed the pay drawn at the time of retirement.

(i) In case of common proceedings, an additional amount of Rs. 5000/- will be payable to Inquiry officer (Both Retired and serving).

(j) 50% will be paid on submission of the Inquiry Report and Remaining amount will be paid within 45 days.

(k) The time limit for furnishing written representation by Charged official on the advice of UPSC is 15 days.

(l) The time limit for conducting major penalty proceeding is 18 months from the date of issue of the charge sheet to Charged Official.

Rule 13. Authority to institute proceedings

(1) The President or any other authority empowered by him by general or special order may-

- (a) institute disciplinary proceedings against any Government servant.
- (b) direct a disciplinary authority to institute disciplinary proceedings against any Government servant on whom that disciplinary authority is competent to impose under these rules any of the penalties specified in rule 11.

(2) A disciplinary authority competent under these rules to impose any of the penalties specified in clauses (i) to (iv) of rule 11 may institute disciplinary proceedings against any Government servant for the imposition of any of the penalties specified in clauses (v) to (ix) of rule 11 notwithstanding that such disciplinary authority is not competent under these rules to impose any of the latter penalties.

PART VI – PROCEDURE OF IMPOSING PENALTY**Rule 14. Procedure for imposing major penalties**

(1) – (4)

- No order imposing any of the penalties specified in clauses (v) to (ix) of Rule 11 shall be made except after an inquiry held, as far as may be, in the manner provided in this rule and rule 15.
- Whenever the disciplinary authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehavior against a government servant, it may itself inquiry into, or appoint under this rule.
- Inquiry in a complaint of sexual harassment within the meaning of rule 3-C of the CCS (Conduct) Rules, 1964 by the complaints Committee.

- Disciplinary appoint of Inquiry officer, presenting officer and charge official take defence assistance, etc.

After the conclusion of the inquiry, a report shall be prepared and it shall contain-

- (a) The article of charge and the statement of the imputations of misconduct or misbehavior.
- (b) Defence of the Government servant in respect of each article of charge.
- (c) an assessment of the evidence in respect of each article of charge.
- (d) the findings on each article of charge and the reasons therefor.

ú STATUTORY NOTE:

Update on Sexual Harassment: The reference to "Complaints Committee" now aligns with the Internal Committee (IC) constituted under the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013. The IC is deemed the Inquiring Authority.

Rule 15. Action on Inquiry Report

(1) The disciplinary authority, if it is not itself the inquiring authority may, for reasons to be recorded by it in writing, remit the case to the inquiring authority for further inquiry and report and the inquiring authority shall thereupon proceed to hold the further inquiry according to the provisions of Rule 14, as far as may be.

(2) The disciplinary authority shall forward a copy of the report of the inquiry, if any, held by the disciplinary authority or where the disciplinary authority is not the inquiring authority, a copy of the report of the inquiring authority together with its own tentative reasons for disagreement, if any, with the findings of inquiring authority on any article of charge to the Government servant who shall be required to submit, if he so desires, his written representation or submission to the disciplinary authority within **fifteen days**, irrespective of whether the report is favorable or not to the Government servant.

(3) If the disciplinary authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties specified in clauses (i) to (iv) of rule 11 should be imposed on the Government servant.

(4) If the disciplinary authority having regard to its findings on all or any of the articles of charge and on the basis of the evidence adduced during the inquiry is of the opinion that any of the penalties specified in clauses (v) to (ix) of rule 11 should be imposed on the Government servant, not be necessary to give the Government servant any opportunity of making representation on the penalty proposed to be imposed.

Rule 16. Procedure for imposing minor penalties

If disciplinary authority want impose any of the penalties specified in clause (i) to (iv) of rule 11 for any misconduct-

- (a) informing the Government servant in writing of the proposal to take action against him and of the imputations of misconduct or misbehavior on which it is proposed to be taken, and giving him reasonable opportunity of making such representation as he may wish to make against the proposal.
- (b) taking the representation, if any, submitted by the Government servant.
- (c) recording a finding on each imputation or misconduct or misbehavior.

Rule 17. Communication of Orders

- Orders made by the disciplinary authority shall be communicated to the Government servant who shall also be supplied with a copy of its finding on each article of charge.
- Where the disciplinary authority is not the inquiring authority, a statement of the findings of the disciplinary authority together with brief reasons for its disagreement, if any, with the findings of the inquiring authority and also a copy of the advice of the Commission and the reasons for such non-acceptance, if any.

Rule 18. Common Proceedings

Where two or more Government servants are concerned in any case, the President or any other authority competent to impose the penalty of dismissal from service on all such Government servants may make an order directing that disciplinary action against all of them may be taken in a common proceeding.

Rule 19. Special procedure in certain cases

Notwithstanding anything contained in rule 14 to 18-

- (i) where any penalty is imposed on a government servant on the ground of conduct which has led to his conviction on a criminal charge.
- (ii) where the disciplinary authority is satisfied for reasons to be recorded by it in writing that it is not reasonably practicable to hold an inquiry in the manner provided in these rules.
- (iii) where the President is satisfied that in the interest of the security of the State, it is not expedient to hold any inquiry in the manner provided in these rules,
- the disciplinary authority may consider the circumstances of the case and make such orders thereon as it deems fit.

Rule 20. Provisions regarding officers lent to State Governments, etc.

(1) The borrowing authority shall have the powers of the appointing authority for the purpose of placing such Government servant under suspension and of the disciplinary authority for the purpose of conducting a disciplinary proceeding against him.

(2) In the light of the findings in the disciplinary proceeding conducted against the Government servant-

- (i) if the borrowing authority is of the opinion that any of the penalties specified in clauses (i) to (iv) of rule 11 should be imposed on the Government servant, it may, after consultation with the lending authority. Provided that in the event of a

difference of opinion between the borrowing authority and the lending authority, the services of the Government servant shall be replaced at the disposal of the lending authority.

- (ii) if the borrowing authority is of the opinion that any of the penalties specified in clauses (v) to (ix) of rule 11 should be imposed on the Government servant, it shall replace his services at the disposal of the lending authority.

Rule 21. Provisions regarding officers borrowed from State Governments, etc.

(1) Where an order of suspension is made or a disciplinary proceeding is conducted against a Government servant and shall be informed of the circumstances leading to the order of the suspension of the Government servant or of the commencement of the disciplinary proceeding, as the case may be.

(2) In the light of the findings in the disciplinary proceeding conducted against the Government servant,

- (i) if the disciplinary authority is of the opinion that any of the penalties specified in clauses (i) to (iv) of rule 11 should be imposed on him except in regard to a government servant serving in the Intelligence Bureau up to the rank of Assistant Central Intelligence Officer, after consultation with the lending authority, pass such orders on the case as it may deem necessary. Provided that in the event of a difference of opinion between the borrowing authority and the lending authority, the services of the Government servant shall be replaced at the disposal of the lending authority.
- (ii) if the disciplinary authority is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall replace the services of such Government servant at the disposal of the lending authority.

PART VII – APPEAL

Rule 22. Orders against which no appeal lies

Notwithstanding anything contained in this part, no appeal shall lie against-

- (i) any order made by the **President**.
- (ii) any order of an interlocutory nature or of the nature of a step-in-aid of the final disposal of a disciplinary proceeding, other than an order of suspension.
- (iii) any order passed by an inquiring authority in the course of an inquiry under Rule 14.

Rule 23. Orders against which appeal lies

Subject to the provisions of Rule 22, a government servant may prefer an appeal against all or any of the following orders, namely:-

- (i) an order of suspension made or deemed to have been made under rule 10.
- (ii) an order imposing any of the penalties specified in rule 11.
- (iii) an order enhancing any penalty, imposed under rule 11.
- (iv) an order which-denies or varies to his disadvantage his pay, allowances, pension, etc..
- (v) stopping him at the efficiency bar in the time-scale of pay on the ground of his unfitness to cross the bar.
- (vi) reverting him while officiating in a higher service, grade or post, to a lower service, grade or post, otherwise than as a penalty.
- (vii) reducing or withholding the pension or denying the maximum pension admissible to him under the rules10.

(Note: The rule in source 435 appears fragmented ("for the period from..."). It legally refers to reducing/withholding pension).

- (viii) determining whether or not the period from the date of his suspension or from the date of his dismissal, removal, compulsory retirement or reduction to a lower service, grade, post, time-scale of pay or stage in a time-scale of pay to the date of his reinstatement or restoration to his service, grade or post shall be treated as a period spent on duty for any purpose.

Rule 24. Appellate Authority

- (i) A Government servant, including a person who has ceased to be in government service, may prefer an appeal against all or any of the orders specified in Rule 23 to the authority specified in this behalf either in the Schedule or by a general or special order of the President or, where no such authority is specified¹².
- (ii) **Group 'A' and 'B'**-
 - Appointing authority, if where the order appealed against is made by an authority subordinate to it.
 - to the President where such order is made by any other authority.
 - **Example-** Order made by Supdt. of post to ASP or IP, he may refer appeal to DPS.
- **Group 'C'**
 - (i) which the authority making the order appealed against is immediately subordinate.
 - **Example-** Order made by Supdt. of post to Group C officer, he may refer appeal to DPS.

Disciplinary and Appellate Authority Table (Postal Dept Specific):

S.L. No.	Category of officer	Disciplinary Authority	Appellate Authority
1.	SAG/HAG/JAG/STS/JTS (officer of IPOS Group A)	President	N/A
2.	PS Group B (SPOS/SRMS/ADs. Etc.)	DG (Posts)	President
3.	PS Group B (SPOs/SRMs/Ads. Etc.)	CPMG	DG (Posts)
4.	Group B (Gazetted) ASP/ASRM	CPMG	Member (P)
5.	Group B (Gazetted) ASP/ASRM	DPS	CPMG
6.	Group B (Non-Gazetted) IRM/IP	DPS	PMG/CPMG
7.	Group C (PA/SA)	SSPOS/SPOS SSRMS/SRMS	DPS
8.	Group C (Postman/Mail Guard, MTS)	IP/IRM/Postmaster	SPOS/SSPOs/ SRM/SSRMS
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ú STATUTORY UPDATE: Clarification on Table Data

- **Appellate Authority for GDS:** While not in this table, for Gramin Dak Sevaks (GDS), the Appellate Authority is generally the authority immediately superior to the Disciplinary Authority (e.g., if SPOs is DA, DPS is AA), governed by GDS (Conduct and Engagement) Rules, 2020, not CCS (CCA).

A Government servant may prefer an appeal against an order imposing any of the penalties specified in rule 11 to the **President**, if such penalty is imposed by any authority other than the President, on such Government servant in respect of his activities connected with his work as an office-bearer of an association, federation or union, participating in the Joint Consultation and Compulsory Arbitration Scheme.

Rule 25. Period of Limitation of appeals

No appeal preferred under this part shall be entertained unless such appeal is preferred within a period of **45 days** from the date on which a copy of the order appealed against is delivered to the appellant.

- **Provided that** the appellate authority may entertain the appeal after the expiry of the said period, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.

Rule 26. Form and contents of appeal

- (i) Every person preferring an appeal shall do so separately and in his own name.
- (ii) The appeal shall be presented to the authority to whom the appeal lies, a copy being forwarded by the appellant to the authority which made the order appealed against. It shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language, and shall be complete in itself.
- (iii) The authority which made the order appealed against shall, on receipt of a copy of the appeal, forward the same with its comments thereon together with the

relevant records to the appellate authority without any avoidable delay, and without waiting for any direction from the appellate authority.

Rule 27. Consideration of appeal

- (i) In the case of an appeal against an order of suspension, the appellate authority shall consider whether in the light of the provisions of rule 10 and having regard to the circumstances of the case, the order of suspension is justified or not and confirm or revoke the order accordingly.
- (ii) In the case of an appeal against an order imposing any of the penalties specified in rule 11 or enhancing any penalty imposed under the said rules, the appellate authority shall consider-
 - (a) whether the procedure laid down in these rules have been complied with and if not whether such non-compliance has resulted in the failure of justice.
 - (b) whether the findings of the disciplinary authority are warranted by the evidence on the record.
 - (c) whether the penalty or the enhanced penalty imposed is adequate, inadequate or severe.

Rule 28. Implementation of orders in appeal

The authority which made the order appealed against shall give effect to the orders passed by the appellate authority.

PART VIII – REVISION AND REVIEW

Rule 29. Revision

(i) Revision is a stage after appeal. Power of revision may be exercised by the revising authority Suo motu or on application from Govt. servant. The Authority who decided the appeal cannot revise his order.

(ii) Authority higher than the appellate authority can revise the order of Appellate authority. Competent Authorities for Revision are-

- the **President**
- **Comptroller and Auditor-General**, in the case of a government servant serving in the Indian Audit and Accounts Department.
- the **Member (Personnel) Postal Services Board** in the case of a government servant serving in or under the Postal Services Board.
- the **Head of a Department** directly under the Central Government, in the case of a government servant serving in a department.
- the **appellate authority**, within **six months** of the date of the order proposed to be revised.
- Any other authority specified in this behalf by the president by a general or special order.

(iii) Consideration in Revision.

- (i) Confirm, modify or set aside the order.
- (ii) Confirm, reduce, enhance or set aside the penalty imposed by the order, or impose any penalty where no penalty has been imposed.
- (iii) Remit the case to the authority which made the order to or any other authority directing such authority to make such further enquiry as it may consider proper in the circumstances of the case.

ú **STATUTORY UPDATE: Time Limits for Revision**

While Rule 29(1)(v) allows the Appellate Authority to revise within 6 months, a general limitation often cited for Revision petitions by the Government servant is also treated as 6 months from the date of the order, barring condonation of delay. The power of the President/Head of Department to revise suo motu (on their own motion) is generally not

time-barred, though administrative instructions suggest it should be done within a reasonable time.

Rule 29-A. Review

The **President** may, at any time, either on his own motion or otherwise review any order passed under these rules, when any **new material or evidence** which could not be produced or was not available at the time of passing the order under review and which has the effect of changing the nature of the case, has come, or has been brought, to his notice.

PART IX – MISCELLANEOUS

Rule 30. Service of orders, notices, etc.

Every order, notice and other process made or issued under these rules shall be served in person on the Government servant concerned or communicated to him by **registered post**.

ú STATUTORY UPDATE: Electronic Service

While the Rule specifies "in person" or "registered post," recent DoP&T instructions and judicial rulings increasingly accept email and electronic means as valid modes of service, provided the delivery can be authenticated. However, for strict statutory compliance during disciplinary proceedings, Registered Post/Speed Post remains the standard to prove 'service' of charge sheets and penalty orders.

Rule 31. Power to relax time-limit and to condone delay

The authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, **extend the time** specified in these rules for anything required to be done under these rules or **condone any delay**.

Rule 32. Omitted

Rule 33. Transitory Provisions

Rule 34. Repeal and Saving

The Central Civil Services (CCA) Rules, 1957 and Civilian in Defense Services (CCA) Rules 1952 hereby repealed.

Rule 35. Removal of doubts

